

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

3. BRIAN CAMBRIDGE V. JORDAN FIERRO

25FL0981

On February 10, 2026, Petitioner filed a Request for Order (RFO) seeking child support orders, custody and visitation orders, property orders and an order for attorney's fees. He filed his Income and Expense Declaration concurrently therewith. He filed an Amended Request for Order on February 13th. All required documents were personally served on February 17th.

Respondent filed a Responsive Declaration to Request for Order and an Income and Expense Declaration on April 16th. Respondent filed another Responsive Declaration to Request for Order on April 17th. There is a Proof of Service filed April 16th for "Respondent's Declaration," it is unclear which, if either, of the responsive declarations was actually served.

Petitioner filed and served an updated Income and Expense Declaration on April 21st.

The parties are ordered to appear for the hearing to address which, if either, of Respondent's responsive declarations was served and can be considered by the court.

TENTATIVE RULING #3: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING TO ADDRESS WHICH, IF EITHER, OF RESPONDENT'S RESPONSIVE DECLARATIONS WAS SERVED AND CAN BE CONSIDERED BY THE COURT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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4. APRIL LOCKHART V. DAVID MERCADO

PFL20200534

On February 4, 2026, Petitioner filed a Request for Order (RFO) seeking child custody and clarification of the court's prior orders. The parties were referred to Child Custody Recommending Counseling (CCRC) and a review hearing was set for the present date.

Respondent filed an RFO on February 5th seeking custody and visitation orders and sanctions. The RFO and the Notice of Tentative Ruling were served on February 13th, however Respondent failed to serve a blank FL-320 as required.

Minor's Counsel filed and served a Responsive Declaration to Request for Order on February 17th.

Petitioner filed another RFO on February 24th seeking orders regarding expenses for the extracurricular activities of the minor.

Respondent filed another RFO on February 25th seeking removal of the CCRC mediator. The request was denied on an ex parte basis but the CCRC appointment was vacated and the issue was set to join with the already scheduled hearing date. It was served with the Notice of Tentative Ruling on March 25th. Again, the required blank FL-320 was not served.

Minor's Counsel filed her Responsive Declaration to Request for Order on March 6, 2026.

On April 9th, Respondent filed and served Respondent's Objection to Untimely Service of Request for Order and Request for Sanctions.

Respondent filed and served a Responsive Declaration to Request for Order on April 17th.

On April 22nd, Petitioner filed three Proof of Service documents alleging service of the following: "FL300 Declaration and Exhibits" on February 18th, "Request for Orders/Enforcement" on April 8th and "Amended Request for Orders/Enforcement" on April 8th.

Respondent objects to the April 8th service as untimely.

Respondent's objection is sustained. The court finds service of the RFO to be late pursuant to Civil Procedure section 1005(b) which states all moving papers are to be